

Number 27 *of* 2009

LAND AND CONVEYANCING LAW REFORM ACT 2009

REVISED

Updated to 30 June 2016

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All Acts up to and including *Criminal Justice (Spent Convictions and Certain Disclosures) Act 2016* (4/2016), enacted 11 February 2016, and all statutory instruments up to and including *European Union (Restrictive Measures concerning Libya) (No. 2) Regulations 2016* (S.I. No. 342 of 2016), made 30 June 2016, were considered in the preparation of this Revised Act.

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LAND AND CONVEYANCING LAW REFORM ACT 2009

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Updated to 30 June 2016

AN ACT TO PROVIDE FOR THE REFORM AND MODERNISATION OF LAND LAW AND CONVEYANCING, TO REPEAL ENACTMENTS THAT ARE OBSOLETE, UNNECESSARY OR OF NO BENEFIT IN MODERN CIRCUMSTANCES, TO PROVIDE FOR THE VARIATION OF TRUSTS, TO MODERNISE THE LAW RELATING TO *LIS PENDENS*, TO AMEND THE REGISTRATION OF DEEDS AND TITLE ACTS 1964 AND 2006 AND CERTAIN OTHER ENACTMENTS AND FOR RELATED MATTERS.

[21*st July*, 2009]

BE IT ENACTED BY THE OIREACHTAS AS FOLLOWS:

PART 1

Preliminary and General

Short title.

1.— This Act may be cited as the Land and Conveyancing Law Reform Act 2009.

Commencement.

2.— This Act shall come into operation on such day or days as the Minister may appoint by order or orders either generally or with reference to any particular purpose or provision and different days may be so appointed for different purposes and different provisions.

Interpretation generally.

3.— In this Act, unless the context otherwise requires—

"Act of 1957" means the Statute of Limitations 1957;

"Act of 1963" means the Companies Act 1963;

"Act of 1964" means the Registration of Title Act 1964;

"Act of 1965" means the Succession Act 1965;

"Act of 1976" means the Family Home Protection Act 1976;

"Act of 1988" means the Bankruptcy Act 1988;

"Act of 1989" means the Building Societies Act 1989;

"Property Registration Authority" has the meaning given to it by section 9 of the Act of 2006;

"purchaser" means an assignee, chargeant, grantee, lessee, mortgagee or other person who acquires land for valuable consideration; and "purchase" shall be read accordingly;

"registered land" has the meaning given to it by section 3(1) of the Act of 1964;

"Registry of Deeds" has the meaning given to it by section 33 of the Act of 2006;

"rent" includes a rent payable under a tenancy or a rentcharge, or other payment in money or money's worth or any other consideration, reserved or issuing out of or charged on land, but does not include interest;

"rentcharge" means any annual or periodic sum charged on or issuing out of land, except—

(*a*) a rent payable under a tenancy, and

(*b*) interest;

"right of entry" means a right to take possession of land or of its income and to retain that possession or income until some obligation is performed;

"right of re - entry" means a right to forfeit the legal owner's estate in the land;

"strict settlement" has the meaning given to it by *section 18(1)(a)*;

"subtenancy" includes a sub-subtenancy; and a "subtenant" shall be read accordingly;

"tenancy" means the estate or interest which arises from the relationship of landlord and tenant however it is created but does not include a tenancy at will or at sufferance;

"tenant" means the person, including a subtenant, in whom a tenancy is vested;

"trust corporation" has the meaning given to it by section 30(4) of the Act of 1965;

" trust of land" has the meaning given to it by *section 18 (1)*;

"unregistered land" has the meaning given to it by section 3(1) of the Act of 1964;

"valuable consideration" does not include marriage or a nominal consideration in money;

"will" includes codicil.

Service of notices.

[CA 1881, s. 67]

4.— (1) A notice authorised or required to be given or served by or under this Act shall, subject to *subsection (2)*, be addressed to the person concerned by name and may be given to or served on the person in one of the following ways:

(*a*) by delivering it to the person; or

(*b*) by leaving it at the address at which the person ordinarily resides or, in a case in which an address for service has been furnished, at that address; or

(*c*) by sending it by post in a prepaid letter to the address at which the person ordinarily resides or, in a case in which an address for service has been furnished, to that address; or

(*d*) where the notice relates to a building with which the person is associated, and it appears that no person is in actual occupation of the building, by affixing it in a conspicuous position on the outside of the building or the property containing the building; or

(*c*) any term coming to an end on the death of a person or persons,

and any contract for such a grant made after the commencement of this Part is void both at law and in equity.

PART 3

Future Interests

Operation of future interests in land.

15.— (1) Subject to *subsection (2)*, all future interests in land, whether vested or contingent, exist in equity only.

(2) *Subsection (1)* does not apply to—

(*a*) a possibility of reverter, or

(*b*) a right of entry or of re-entry attached to a legal estate.

Abolition of various rules.

16.— Subject to *section 17*, the following rules are abolished:

(*a*) the rules known as the common law contingent remainder rules;

(*b*) the rule known as the Rule in *Purefoy v. Rogers;*

(*c*) the rule known as the Rule in *Whitby v. Mitchell* (also known as the old rule against perpetuities and the rule against double possibilities);

(*d*) the rule against perpetuities;

(*e*) the rule against accumulations.

Scope of *section 16*.

17.— *Section 16* applies to any interest in property whenever created but does not apply if, before the commencement of this Part, in reliance on such an interest being invalid by virtue of the application of any of the rules abolished by that section—

(*a*) the property has been distributed or otherwise dealt with, or

(*b*) any person has done or omitted to do any thing which renders the position of that or any other person materially altered to that person's detriment after the commencement of this Part.

PART 4

Trusts of Land

Trusts of land.

18.— (1) Subject to this Part, where land is—

[[SLA 1882, ss. 2, 59, 60]

(*a*) for the time being limited by an instrument, whenever executed, to persons by way of succession without the interposition of a trust (in this Part referred to as a "strict settlement"), or

(*b*) held, either with or without other property, on a trust whenever it arises and of whatever kind, or

(*c*) vested, whether before or after the commencement of this Part, in a minor,

there is a trust of land for the purposes of this Part.

(2) For the purposes of—

(5) Nothing in this section affects the jurisdiction of the court under the Act of 1976, the Act of 1995 and the Act of 1996.

(6) The equitable jurisdiction of the court to make an order for partition of land which is co-owned whether at law or in equity is abolished.

Bodies corporate.

32.— (1) A body corporate may acquire and hold any property in a joint tenancy in the same manner as if it were an individual.

[BC(JT) A 1899]

(2) Where a body corporate and an individual or two or more bodies corporate become entitled to any property in circumstances or by virtue of any instrument which would, if the body or bodies corporate had been an individual or individuals, have created a joint tenancy, they are entitled to the property as joint tenants.

(3) On the dissolution of a body corporate which is a joint tenant of any property, the property devolves on the other surviving joint tenant or joint tenants.

PART 8

Appurtenant Rights

Chapter 1

Easements and profits à prendre

Interpretation of *Chapter 1*.

33.— In this Chapter, unless the context otherwise requires—

"dominant land" means land benefited by an easement or *profit à prendre* to which other land is subject, or in respect of which a relevant user period has commenced; and "dominant owner" shall be read accordingly and includes that owner's predecessors and successors in title;

"foreshore" has the meaning given to it by section 2(1) of the Act of 1957;

"interruption" means interference with, or cessation of, the use or enjoyment of an easement or *profit à prendre* for a continuous period of at least one year, but does not include an interruption under *section 37 (1)*;

"period of non-user" means a period during which the dominant owner ceases to use or enjoy the easement or *profit à prendre*;

"relevant user period" means a period of user as of right without interruption by the person claiming to be the dominant owner or owner of *profit à prendre* in gross—

(*a*) where the servient owner is not a State authority, for a minimum period of 12 years, or

(*b*) where the servient owner is a State authority, for—

(i) a minimum period of 30 years, or

(ii) where the servient land is foreshore, a minimum period of 60 years;

"servient land" means land subject to an easement or *profit à prendre*, or in respect of which a relevant user period has commenced; and "servient owner" shall be read accordingly and includes that owner's predecessors and successors in title;

"State authority" means a Minister of the Government or the Commissioners of Public Works in Ireland;

vendor shall bear the expense of perusal and execution on behalf of or by the vendor, and on behalf of and by necessary parties other than the purchaser.

(7) A vendor may retain a document of title where—

(*a*) the vendor retains any part of the land to which the document relates, or

(*b*) the document comprises an instrument—

(i) creating a trust which still exists, or

(ii) relating to the appointment or discharge of a trustee of an existing trust.

(8) This section takes effect subject to the terms of the contract for the sale or other disposition of the land.

(9) Nothing in this section is to be read as binding a purchaser to complete the purchase in any case where, on a contract made without reference to this section but containing stipulations similar to any of its provisions, specific performance would not be granted by the court against the purchaser.

(10) In this section—

(*a*) "instrument" includes a copy or abstract,

(*b*) "production" includes furnishing a copy or abstract and cognate words shall be read accordingly.

Protection of purchasers.

59.— (1) Recitals, statements and descriptions of facts, matters and parties contained in instruments, statutory provisions or statutory declarations 15 years old at the date of the contract are, unless and except so far as they are proved to be inaccurate, sufficient evidence of the truth of such facts, matters and parties.

[VPA 1874, s. 2][CA 1881, s. 3]

(2) Where land sold is held under a tenancy (other than a subtenancy), the purchaser shall assume, unless the contrary appears, that the tenancy was duly granted; and, on production of the receipt for the last payment due for rent under the tenancy before the date of the actual completion of the purchase, the purchaser shall assume, unless the contrary appears, that all the covenants and provisions of the tenancy have been duly performed and observed up to the date of actual completion of the purchase.

(3) Where land sold is held under a subtenancy, the purchaser shall assume, unless the contrary appears, that the subtenancy and every superior tenancy were duly granted; and, on production of the receipt for the last payment due for rent under the subtenancy before the date of the actual completion of the purchase, the purchaser shall assume, unless the contrary appears, that all the covenants and provisions of the subtenancy have been duly performed and observed up to the date of actual completion of the purchase, and also that all rent due under, and all covenants and provisions of, every superior tenancy have been paid and duly performed and observed up to that date.

Fraudulent concealment and falsification.

60.— (1) Any person disposing of land to a purchaser, or the solicitor or other agent of such a person, who with intent to defraud—

(*a*) conceals from the purchaser any instrument or incumbrance material to the title, or

[LPAA 1859, s. 24][LPAA 1860, s. 8]

(*b*) falsifies any information or matter on which the title may depend in order to induce the purchaser to accept the title offered or produced,

is guilty of an offence under this Act.